

25STLC04013 25STLC04013

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-27

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Case Number: 25STLC04013 Hearing Date: July 27, 2026 Dept: 25

HEARING DATE: Mon., July 27, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Zheng

v. Internet Corp. for Assigned Names and Numbers, et al.

COMP. FILED: 05-20-25

CASE NUMBER: 25STLC04013

NOTICE: OK

PROCEEDINGS: MOTION

TO COMPEL DISCLOSURE OF COMMUNICATIONS BETWEEN DEFENSE COUNSEL AND COURT CLERK

MOVING PARTY: Plaintiff

MinJie Zheng

RESP. PARTY: Defendant Internet Corporation for
Assigned Names and Numbers

MOTION TO COMPEL DISCLOSURE OF
COMMUNICATIONS

(CCP § 2023)

TENTATIVE RULING:

The Court

DENIES Zheng's motion to compel disclosure of communications.

The Court ORDERS Zheng to SHOW
CAUSE, on September 10, 2026, why he should not be sanctioned the attorney fees
and costs ICANN incurred opposing a frivolous discovery motion.

ICANN is to file and serve evidence
of the fees and costs that it reasonably incurred in opposing this motion no
later than August 14, 2026.

The Judicial Assistant is to give
notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 13, 2026 ☐ Late ☐ None

REPLY: Filed
on July 13, 2026 ☐
Late ☐ None

ANALYSIS:

On
May 18, 2026, the Internet Corporation for Assigned Names and Numbers (ICANN)
filed a "Notice of Filing Difficulties," alerting the Court that it encountered
issues filing its demurrer to MinJie Zheng's third amended complaint. In the notice, ICANN's counsel mentioned spending
"several hours on the phone with OneLegal, Apex Legal Services, the limited
jurisdiction clerks, the Spring Street Courthouse clerk, and Department 25" in
attempting to resolve the issue. Despite

the difficulties outlined in the declaration, ICANN's demurrer to Zheng's third amended complaint was timely filed on May 18, 2026, and the Court sustained that demurrer without leave to amend.

Zheng

now seeks to compel ICANN to produce all communications between its counsel and any court staff in connection with its notice.

The Court DENIES Zheng's motion.

First, Zheng claims only to have made an informal discovery request of ICANN, and says he did even that much only in his reply. (See *Plenger v. Alza Corp.* (1992) 11 Cal.App.4th 349, 362, fn. 8 [courts should consider new facts presented in reply only "in the exceptional case," and then only if the non-moving party has an opportunity to respond to those facts].) That request was an emailed demand for "full records of all communications between" ICANN's counsel and court staff, "including call logs, meeting notes, email correspondence, and all relevant supporting materials [ICANN] referenced in [the] Notice of Filing Difficulties." That is not a formal discovery request. Furthermore, Zheng made the request on June 25, 2026; he filed this motion the next day. That is improper under any discovery statute, given that a party typically has 30 days to respond to a discovery request. (E.g., Code Civ. Proc., §§ 2030.260, 2031.260, 2033.250.)

Zheng's motion also seeks irrelevant discovery. Zheng argues that ICANN put its communications with court staff at issue by filing its notice. Discovery requests must be "relevant to the subject matter involved in the pending action," such that the discovery would prove or disprove a disputed fact that is of consequence. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds; Code Civ. Proc., § 2017.010.) Zheng provides no evidence that communications between court staff and ICANN's counsel are relevant to any cause of action. Or, indeed, why they are relevant to anything at all, given that ICANN's demurrer was timely filed regardless of ICANN's professed difficulties in filing it.

As for Zheng's argument that the discovery is relevant to his pending motion for reconsideration, the Court finds it unpersuasive. That motion is

based on a challenge to this Court's authority to have heard ICANN's demurrer and does not involve any communications between court staff and ICANN's counsel. ICANN's notice was a professional courtesy, and the Court's ruling on the timely filed demurrer would have been the same even if ICANN never filed the notice.

On the

other side of the coin, Zheng's discovery motion was both procedurally improper and entirely frivolous. (Code Civ.

Proc., § 2023.010, subds. (b), (c), (h).)

It is part of a pattern of abusive filings that the Court has recognized twice previously, and which the Court notes has continued since. The Civil Discovery Act makes clear that California's courts need not allow their processes to be used to facilitate this type of abuse.

The Court therefore ORDERS Zheng to

SHOW CAUSE, on Thursday, September 10, 2026 at 10:00 a.m. in Department 25 of the Spring Street Courthouse, why he should not be sanctioned the attorney fees and costs ICANN expended in opposing this motion. (Code Civ. Proc., § 2030.030, subd. (a); City of Los Angeles v. PricewaterhouseCoopers, LLP (2024) 17 Cal.5th 46, 75.)

ICANN should file with the Court and

serve on Zheng evidence setting forth both the amount of the fees and costs it incurred in opposing this motion and evidence that those fees and costs were reasonably incurred. ICANN's materials should be filed and served no later than Friday, August 14, 2026.

The

Judicial Assistant is to give notice.